

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	20-07-2026 09:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	20-07-2026 09:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Power
विभाग का नाम/Department Name	Bhakra Beas Managemet Board
संगठन का नाम/Organisation Name	Bhakra Beas Management Board
कार्यालय का नाम/Office Name	Bhakra Beas Management Board, Chandigarh
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :bbmb-gempu@bbmb.nic.in Buyer Email id: aetech-sedph@bbmb.nic.in
कुल मात्रा/Total Quantity	112
वस्तु श्रेणी /Item Category	Safety Footwear (V3) ISI marked to IS 15298 (Part 2) (Q2) , Industrial Safety Helmet (V3) ISI marked to IS 2925 (Q2)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	2
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	Safety Footwear (V3) ISI marked to IS 15298 (Part 2)
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20

मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

1. Preference to Make In India products (For bids < 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate. The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023 [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any

impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

4. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

Safety Footwear (V3) ISI Marked To IS 15298 (Part 2) (12 pairs)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

Bis Required	Yes
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तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Classification	Classification	Class I
Design	Design	B (Ankle Boot)
Basic Requirement	Category Type	SB
Whole Footwear additional requirements	Resistance to inimical environments	Heat insulation of outsole complex (HI)
	Resistance to water (WR)	Yes
Size	UK Size	4, 4.5, 5.5, 6, 7, 7.5, 8.5, 9, 10, 10.5, 5, 6.5, 8, 9.5, 11, 12
Material	Upper Material of Footwear	Leather
	Quarter Lining	With
	Toe Cap	Metallic
Generic	Insole provided	Yes
	Insock type	Full Insock, Removable and water permeable
	Performance resistance insert type	Metallic
Outsole	Material of Outsole	Polyurethane

Additional Specification Parameters - Safety Footwear (V3) ISI Marked To IS 15298 (Part 2) (12 pairs)

Specification Parameter Name	Bid Requirement (Allowed Values)
OTHER SPECS	Safety shoes, Class 1, B (Ankle boot), HI,WR, Full in sock, Removable & water permeable, Material of outsole : Polyurethane, confirmation to IS 1529 (part 2), Anti-skid & Oil-resistant sole, water-resistant upper, ankle support suitable for slippery floors. (7 no.- 5 pair, 8 no.- 5 pair, 9 no.- 1 pair & 10 no.- 1 pair)

* Bidders offering must also comply with the additional specification parameters mentioned above.

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

Applicable Specification Document	View
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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Devinder Kumar Sharma	175017,RE, Division, BBMB, Slapper, Distt. Mandi (HP)	12	30

Safety Footwear (V3) ISI Marked To IS 15298 (Part 2) (40 pairs)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

Bis Required	Yes
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तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Classification	Classification	Class I
Design	Design	A (Low Shoe)
Basic Requirement	Category Type	SB
Whole Footwear additional requirements	Resistance to water (WR)	Yes, No
Size	UK Size	7
Material	Upper Material of Footwear	Leather
	Quarter Lining	With
	Toe Cap	Metallic
Generic	Insole provided	Yes

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Insock type	Full Insock, Removable and water permeable
	Performance resistance insert type	Metallic
Outsole	Material of Outsole	Polyurethane

Additional Specification Parameters - Safety Footwear (V3) ISI Marked To IS 15298 (Part 2) (40 pairs)

Specification Parameter Name	Bid Requirement (Allowed Values)
OTHER SPECS	Safety shoes, Class 1, A (low shoes), Leather, Toe cap-mettalic (8 no.- 16 pair, 9 no.- 16 pair & 10 no.- 8 pair)

* Bidders offering must also comply with the additional specification parameters mentioned above.

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

Applicable Specification Document	View
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परिषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परिषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Devinder Kumar Sharma	175017,RE, Division, BBMB, Slapper, Distt. Mandi (HP)	40	30

Industrial Safety Helmet (V3) ISI Marked To IS 2925 (60 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

Bis Required	Yes
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तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Specification	Governing Specification	As per IS 2925
Generic	Helmet size (in mm)	520, 530, 540, 550, 560, 570, 580, 590, 600

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Type of Brim	Brim with peak
	Provision of Lamp bracket	No
	Provision of Cable clip	Yes
	Color of helmet	Red, Green, White, Yellow, Brown, Blue, Grey, Pink

Additional Specification Parameters - Industrial Safety Helmet (V3) ISI Marked To IS 2925 (60 pieces)

Specification Parameter Name	Bid Requirement (Allowed Values)
OTHER SPECS	COLOUR N SIZE WILL BE PROVIDED AT THE TIME OF ORDER

* Bidders offering must also comply with the additional specification parameters mentioned above.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Devinder Kumar Sharma	175017,RE, Division, BBMB, Slapper, Distt. Mandi (HP)	60	30

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

A. MATERIAL SPECIFICATIONS

Sr. No.	Description	Qty
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1	Safety shoes, Class 1, B (Ankle boot), HI, WR, Full in sock, Removable & water permeable, Material of outsole : Polyurethane, confirmation to IS 1529 (part 2), Anti-skid & Oil-resistant sole, water-resistant upper, ankle support suitable for slippery floors. (7 no.- 5 pair, 8 no.- 5 pair, 9 no.- 1 pair & 10 no.- 1 pair)	12 pair
2	Safety shoes, Class 1, A (low shoes), Leather, Toe cap-metallic (8 no.- 16 pair, 9 no.- 16 pair & 10 no.- 8 pair)	40 pair
3	Safety helmet, Free size, Brim with peak	60 No.

B. OTHER TERMS & CONDITIONS

- The quoted rates will be FOR destination Slapper Distt Mandi (HP)- 175017 and including all taxes and other charges.
- Delivery period:** 30 days from date of GeM contract.
- Payment terms:** - 100% payment will be made within 30 days after the receipt of material in good condition & thereafter successful installation at site and according to the specification and physical verification and record entry by the consignee in the relevant G.R./M.B/Generation of CRAC. (Through GEM pool Account).

4. Force Majeure

The supplier shall not be liable for any penalty charges due to delay in manufacture or delivery of material resulting from any causes beyond the company's reasonable control including but not limited to compliance with regulations, orders or instructions of Central/State or Municipal Govts. or Agency thereto, acts of God, acts of Civil and Military authorities, fires, floods, strikes, lockouts, freight embargoes, war risks, riots and civil commotions. The supplier will seek extension of delivery period within three weeks of occurrence of such an event and clearly state anticipated delay in supply on account of such an event/event. On receipt of such a request from the supplier extension in the delivery period may be granted for the period for which the completion of work is proved by the supplier to have been delayed for circumstances covered by reasons of force majeure subject to further condition that if the delivery period is likely to be extended by more than sixty days on account of any event, the purchaser shall have the option to accept any portion of the balance material and cancel the order for the rest provided however that if any material had been manufactured exclusively for the purchaser under the contract prior to the commencement of force majeure circumstance, it shall be accepted by the purchaser and the cancellation will be without any liability for damage on the part of the supplier and without any payment of compensation by the Board.

5. Extension in Delivery Schedule:-

Any genuine delay in approval of technical details, drawings of samples, issuance of amendment of Purchase Order, conducting inspection and approval of inspection, test reports/test certificates or allowing dispatches etc., will count towards extension of the delivery period by corresponding p

period other than admissible under force-majeure conditions, if any, substantiated by the supplier and duly accepted by the Purchaser. In such cases, the amendment in respect of date of delivery shall be made by the competent authority.

6. **Liquidated Damages:** If the supplier fails to abide by the provisions of Clause 'Delivery Period', he shall be liable to pay @2% per week or part thereof of the ex-works delivery price excluding taxes and duties (but including freight and insurance charges where breakup of FOR destination price is not available) of such portion of material as has not been delivered within the 'Delivery Period' subject to maximum of 10% of the contract value of the delayed/undelivered portion of the material.
7. **Warranty:-** The supplier shall be made responsible to replace free of cost, with no transportation or insurance cost to the Board up to the destination, the whole or any part of the material which in normal and proper use proves defective in quality or workmanship, subject to the condition that the defects are noticed within 12 months from the date the material is commissioned/put to use by the end user or 18 months from the date of dispatch whichever period may expire earlier. The consignee or any other officer of the Board actually using the material will give prompt notice of each defect to the Supplier as well as the purchasing authority. The replacement shall be effected by the supplier within a reasonable time, but not, in any case not exceeding 60 days from the date of intimation of defects. The Supplier shall, also, arrange to remove the defective supply within a reasonable period but not exceeding 60 days from the date of issue of the notice in respect thereof, failing which the Purchasing Authority shall reserve the right to dispose of the defective material in any manner considered fit by it, at the sole risk and cost of the supplier. Any sale proceeds of the defective material after meeting the expenses incurred on its custody, disposal, handling etc. shall, however, be credited to the supplier's account and set off against any outstanding dues of the Board against the supplier. These provisions shall, also, equally apply to the replaced material. In case the material is again found to be defective within a period of 12 months of its replacement, it shall also have to be replaced similarly.
8. **Inspection of the material will be carried out at BBMB store, Slapper by end user and C RAC will be generated after obtaining inspection report of the material by the end user**.
9. **Replacement of rejected material:-**
 - (i) Material found sub-standard or defective or not conforming to the prescribed specifications in any manner, at the consignee's end, shall not be accepted and an intimation to this effect, shall be given to the Supplier and the Purchasing Authority by the consignee. The Purchasing authority shall promptly take up the matter with the Supplier and ask him to rectify or replace the defective/sub standard material forthwith, and in any case, within a period of 60 days from the date of intimation of rejected supplies, failing which the Board shall reserve the right to get the defect rectified at the supplier's cost or to dispose off such material and adjust the sale proceeds thereof, if any, against its claim on the Supplier. The Supplier shall also be notified that all expenses involved in the replacement by way of handling, transportation, storage etc. shall be on his account.
 - (ii) In respect of the defective/substandard supplies, the date on which such a supply is replaced, shall be reckoned as the effective date of delivery there against and the delay shall be worked out accordingly with reference to the date on which the supply was due as per the terms of contract for the purpose of determining penalties/liquidated damages.
 - (iii) The provision of sub clause (i) and (ii) above, shall apply mutatis mutandis to the material found sub-standard or defective during the period of warranty.
10. **ARBITRATION :-**If at any time any question, dispute or difference, whatsoever, shall arise between the Purchaser and the Supplier, upon or in relation to or in connection with the Contract either party may forthwith give to the other, notice in writing of the existence of such question, dispute or

difference and the same shall be referred to award of an arbitral tribunal, whose decision shall be final and binding on the parties and the provisions of The Arbitration and Conciliation Act, 1996 and of the rules there under and any statutory amendment/ modification or reenactment thereof, for the time being in force, shall be deemed to apply to and be incorporated in the Contract. Arbitral Tribunal shall comprise 'N' No. of Arbitrators where 'N' shall be an odd number. (N-1)/2 No. of Arbitrator shall be appointed by the Supplier and the Purchaser each and the remaining 1 (one) No. Arbitrator shall be appointed by the aforementioned N-1 Arbitrators who shall act as the Presiding Arbitrator. In case N=1, the sole arbitrator will be appointed with mutual consent of the Supplier and the Purchaser." Such a notice of the existence of any question, dispute or difference in connection with contract shall be served by either party within 180 days of the issue of receipt by the consignee for each consignment, failing which all rights and claims under this contract shall be deemed to have been forfeited and absolutely barred. The work under the contract shall, if reasonably possible, continued during the Arbitration proceedings and no payment due or payable by the purchaser shall be withheld on account of such proceedings.

11. **CANCELLATION OF PURCHASE ORDER:-** The purchaser shall have the right to amend or cancel the order at any time before the receipt of intimation regarding manufacturing of material, if he is satisfied that the delay in execution of the order by firm is wilful and detrimental to the interest of the Board. In case where after the commencement of manufacture there is a wilful delay on the part of the supplier to the dispatch/manufacture of the material the purchaser may cancel the order for whole unexecuted portion after giving a notice of 15 days to the supplier.

2. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.

10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---

